

Before the Federal Maritime Commission, Washington, DC.

Docket No. 25-08

FormuKleen, Inc.
(Complainant)

vs.

Top Shipping Systems, Corp.
(Respondent)

Before the Federal Maritime Commission
Washington, D.C.

**COMPLAINANT’S MOTION TO STAY THE AUGUST 25, 2026 OPENING-BRIEF
DEADLINE AND FURTHER MERITS BRIEFING**

Complainant respectfully moves under 46 C.F.R. §§ 502.102(a) and 502.105 to stay the August 25, 2026 deadline for Complainant’s opening merits brief and all subsequent merits-briefing deadlines pending disposition of Complainant’s August 9, 2026 Combined Motion for Reconsideration of the July 27, 2026 Order and, in the Alternative, Motion for Leave to File an Interlocutory Appeal. If leave to appeal is granted, Complainant requests that the stay remain in effect pending the Commission’s disposition of the certified appeal. Because certification does not itself stay the proceeding under 46 C.F.R. § 502.221(d), a separate stay order is necessary.

Good cause exists. The combined motion concerns whether Complainant must brief the merits without documents Respondent was ordered to produce and whether the July 27 Order may leave the April 1 and June 5 production commands unenforced. It requests either production in time for Complainant to review and use it in its opening brief or relief under 46 C.F.R. § 502.150(b)(1). Requiring merits briefing to proceed before those issues are resolved would defeat the purpose of the requested relief and force Complainant to brief the case on the incomplete record the combined motion challenges.

The timing established by Rule 221 makes a stay necessary. Respondent may reply to the motion for leave and the appeal within fifteen days after service. 46 C.F.R. § 502.221(c). Because the combined motion was filed and served on August 9, 2026, Respondent’s response period extends through August 24, only one day before Complainant’s opening merits brief is due. The existing schedule therefore permits Respondent to use virtually the entire period

remaining before Complainant's opening brief is due and leaves, at most, one day for disposition of the interlocutory-review request, while requiring Complainant to prepare its merits brief throughout that period.

A limited stay will preserve the status quo, avoid potentially duplicative briefing, and permit the Presiding Officer and, if necessary, the Commission to determine what record should govern the merits. It will not unfairly prejudice Respondent because it applies to all remaining merits-briefing deadlines and lasts only until the pending issues are resolved. Proceeding without a stay, by contrast, would require Complainant to prepare its opening brief without knowing whether compelled production will be ordered, whether additional time will be provided to review and use that production, or whether relief will be granted under § 502.150(b)(1).

Pursuant to 46 C.F.R. § 502.71(a), Complainant conferred with Respondent by email regarding the specific stay requested. Respondent replied that it opposed the requested stay.

WHEREFORE, Complainant respectfully requests that the Presiding Officer:

1. STAY the August 25, 2026 deadline for Complainant's opening merits brief and all subsequent merits-briefing deadlines pending disposition of Complainant's combined motion for reconsideration and leave to appeal;
2. IF LEAVE TO APPEAL IS GRANTED, continue the stay pending the Commission's disposition of the certified appeal; and
3. ENTER a revised merits-briefing schedule after disposition of the combined motion or certified appeal, as applicable.

Respectfully submitted,

Sara Dandan

Licensed to practice before the Commission and in good standing

FourOneOne LLC

2501 Chatham Rd, Suite 8082

Springfield, IL 62704

Email: sara@fouroneone.io

Phone: 630-286-9846

Signature:  _____

Date: 08/10/2026

CERTIFICATE OF SERVICE

I certify that on August 10, 2026, a true and correct copy of the foregoing was filed via electronic mail with the Federal Maritime Commission and the following known parties of record for the Respondent:

Ricky Villena

Top Shipping Systems, Corp.

12480 NW 25th Street, Ste. 100

Miami, Florida 33182

ricky.villena@tsscorp.us

Sara Dandan

